

# PASSED

**CHICKASAW TRIBAL LEGISLATURE**  
**Permanent Resolution Number 38-001**  
**Amendments to Title 17 of the Chickasaw Nation Code**  
**(Integrated Crimes)**

**WHEREAS**, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

**WHEREAS**, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

**WHEREAS**, the Chickasaw Tribal Legislature has previously enacted rules and regulations for offenses and penalties, and

**WHEREAS**, the Chickasaw Tribal Legislature desires to enact further rules and regulations for offenses and penalties.

**NOW, THEREFORE, BE IT RESOLVED**, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 17, Chapter 1, Section 17-100.1 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red):

**CHAPTER 1**  
**GENERAL PROVISIONS**

**SECTION 17-100.1**      **INTEGRATED CRIMES.**

A.      Unless otherwise prohibited by applicable law, the criminal acts or omissions as prescribed by the State of Oklahoma along with their elements and as interpreted by the Chickasaw Nation courts, shall apply when any person within the treaty territory of the Chickasaw Nation is guilty of any act or omission, although not made punishable by any enactment of the Chickasaw Tribal Legislature, would be punishable if committed or omitted within the State of Oklahoma.

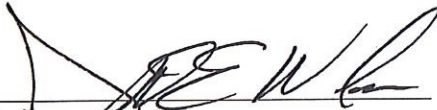
B.      Notwithstanding the provisions of Title 5, Section 5-701.3, of the Chickasaw Code,

1. if such crime is classified as a felony within the State of Oklahoma, it shall be punishable by a fine of not more than fifteen thousand dollars (\$15,000.00), a term of imprisonment not to exceed three (3) years, or both.

2. if such crime is classified as a misdemeanor within the State of Oklahoma, it shall be punishable by a fine of not more than five thousand dollars (\$5,000.00), a term of imprisonment not to exceed one (1) year imprisonment, or both.

C. The applicable criminal procedures, Rules of Evidence, and any other procedural rules, as well as the Defendant's rights and privileges shall be those recognized under enacted laws of the Chickasaw Nation. State and Federal statutes and case law will not be binding on the Chickasaw Nation. Nothing in this section shall be construed to waive the sovereign rights and immunities of the Chickasaw Nation.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on November 20, 2020, by a vote of 13 ayes, 0 nays, 0 abstentions.

  
Chairperson  
Chickasaw Tribal Legislature

  
Secretary  
Chickasaw Tribal Legislature

Concur:   
Bill Anoatubby, Governor  
The Chickasaw Nation

Date: NOV 20 2020

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**Explanation:**

This resolution adds one new section in General Provisions of Title 17, Offenses and Penalties. Under this section, the Chickasaw Nation may prosecute an offense that is a crime under Oklahoma state law but is not defined as a crime under the Chickasaw Nation Code.

**Presented by:**

Legislative Committee,  
Chickasaw Tribal Legislature